

bears the same burden as to the defense. (*Rosenthal v. Great Western Fin. Securities Corp.* (1996) 14 Cal.4th 394, 413-414.)

However, the burden of production may shift in a three-step process. (See *Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 165–166.)

Unless there is a dispute over authenticity, the mere recitation of the terms is sufficient for a party to move to compel arbitration. (*Sprunk v. Prisma LLC* (2017) 14 Cal.App.5th 785, 793.) If Defendant meets its initial prima facie burden and the Plaintiff disputes the agreement, then the Plaintiff bears the burden of producing evidence to challenge the authenticity of the agreement. (see *Condee v. Longwood Management Corp.* (2001) 88 Cal.App.4th 215, 219.)

Plaintiff may do this by declaring under penalty of perjury that they never saw or do not remember seeing the agreement. (see *Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 165; *Garcia v. Stoneledge Furniture LLC* (2024) 102 Cal.App.5th 41, 52.)

Defendant established its initial burden by reciting the terms in its moving papers. This shifted the burden to Plaintiff to challenge the authenticity of the agreement. Here, Plaintiff has declared that they never looked at the Warranty Booklet that contained the arbitration agreement and had never seen the document before. (Ofili Decl. ¶¶ 14, 15.) This is sufficient to shift the burden back to Defendant to authenticate the document. The ultimate burden of proving the agreement by a preponderance of the evidence remains with the moving party. (*Iyere v. Wise Auto Group* (2023) 87 Cal.App.5th 747, 755.)

In reply, Defendant states “Plaintiff has not proved the falsity of the purported agreement, as there is no evidence provided by Plaintiff to contradict the fact that the arbitration agreement submitted by Defendant is what Defendant purports it to be.” (Reply 2:2-4.) This misunderstands Plaintiff’s burden and Defendant’s ultimate burden. By Plaintiff declaring they had never seen agreement and did not know it existed it was sufficient to shift the burden back to Defendant. Instead of then offering admissible evidence authenticating the document, Defendant incorrectly states Plaintiff had not met their burden.

It is Defendant that has failed to meet their burden to authenticate the document and show that there is a valid agreement to arbitrate.

Accordingly, the motion to compel arbitration is DENIED.

26CV-02049 Petition of: Tatianna Muniz

Order to Show Cause Re: Name Change

Appearance required.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Civil Law & Motion/ Petition Name Change
Hon. Jennifer O Trimble
Courtroom 12

1159 G Street, Los Banos

Tuesday, June 02, 2026
1:30 p.m.

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

1. You must call (209) 725-4240 to notify the court of your intent to appear.
2. You must give notice to all other parties before 4:00 p.m. of your intent to appear.

Per California Rules of Court, rule 3.1308(a)(1), failure to do both items 1 and 2 will result in no oral argument. *Note:* Notifying CourtCall (the court's telephonic appearance provider) of your intent to appear does not satisfy the requirement of notifying the court.

Case No.	Title / Description
----------	---------------------

25CV-04489	Angel Olivares Escobar, et al.vs Roger Brewer, Junior
------------	---

Order Show Cause Re: Dismissal

Appearance required.

24CV-01187	Evelyn Lemus vs. Los Banos Unified School District
------------	--

Order Show Cause Re: Dismissal

Appearance required.

25CV-00397	Randall Orozco vs. Teixeira and Sons, LLC, et al.
------------	---

Motion to Compel Further Responses to Request for Admission, Set Two